

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

MSC MEDITERRANEAN SHIPPING CO. SA, *Respondent*.

DOCKET NO. 23-12

Served: September 24, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

On September 23, 2024, the parties filed a Joint Motion to Extend Deadlines (“MTE”), seeking a 45-day extension of the remaining deadlines from those established in the First Amended Scheduling Order issued on August 8, 2024. The initial proposed schedule and the amended schedule granted requests to close discovery well after typically allowed under the rules because of the volume of documents being produced, the need to manually review the large volume of documents, and the number of witnesses anticipated for depositions. 46 C.F.R. § 502.141; Initial Order at 1; Scheduling Order at 1-3; First Amended Scheduling Order at 1. The parties assert the same reasons as good cause for the current extension of time, adding that Complainant is changing e-discovery vendors, and the vendors have experienced technical issues migrating data from one company to the other, affecting Complainant’s production of documents. MTE at 3-4.

The proposed schedule seeking a 45-day extension in addition to the extensions previously granted results in completion of discovery a year later than contemplated by Commission Rule 141. While good cause exists to allow this amendment—specifically the technical issues migrating data between vendors—the parties must endeavor to limit further discovery extension requests. In this regard, the parties are strongly encouraged to resolve discovery disputes between themselves, to narrow the issues and stipulate to facts when possible, to cooperate in the scheduling of depositions, and to avoid cumulative testimony. The parties should make every effort to work within the confines of the below schedule before filing further motions for extensions of time.

Accordingly, the parties are **ORDERED** to follow the schedule set forth below:

November 14, 2024	Substantial completion of documents and ESI pursuant to initial RFPs
December 16, 2024	Joint status report due describing status of discovery
January 17, 2025	Complete depositions of fact witnesses

January 17, 2025	Last day to serve interrogatories, requests for admission, and RFPs
February 6, 2025	Disclosure of initial expert reports, if any
March 10, 2025	Disclosure of rebuttal expert reports, if any
March 13, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
April 8, 2025	Complete expert depositions
April 8, 2025	Close of discovery
May 1, 2025	Complainant's initial brief, proposed findings of fact, and appendix
May 29, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 12, 2025	Complainant's reply brief and responses to proposed findings of fact



Linda S. Harris Crovella
Administrative Law Judge